

TERMS OF SERVICE holidayhavenhomes.com

It's important to read our TERMS OF SERVICE carefully as they contain information regarding your legal rights. These include your obligations to comply with applicable laws and regulations.

As a Traveler or Property Representative you should understand the laws in their respective cities. There are given cities with laws that restrict Property Representatives to market a property for less than 30 days and in other cases more than 30 days. It's vital to review the laws in your city. In many cities, Property Representatives must register, get a permit, or obtain a license before a property can be marketed or accept a Traveler. Some cities even have prohibited short-terms bookings altogether. Local legislations can vary greatly in enforcement and penalties. Ensure as a Property Representative you review all local restrictions before advertising your property.

TERMS OF SERVICE

holidayhavenhomes.com provides an online platform that connects Property Representatives who have bookable accommodations to Travelers seeking to book such accommodations (collectively, the "Services"), which Services are accessible at <http://www.holidayhavenhomes.com> and any other websites through which holidayhavenhomes makes the Services available (collectively, the "Site"). By using the Site, you agree to comply with and be legally bound by the terms and conditions of these Terms of Service ("Terms"), whether or not you become a registered user of the Services. These Terms govern your access to and use of the Site, Services and all Collective Content (defined below), constitute a binding legal agreement between you and holidayhavenhomes. Please also read carefully our Privacy Policy at https://www.holidayhavenhomes.com/privacy_policy. If you do not agree to these Terms, you have no right to obtain information from or otherwise continue using the Site or Services. Failure to use the Site or Services in accordance with these Terms may subject you to civil and criminal penalties.

The site and services comprise an online platform through which property representatives may create listings for accommodations and travelers may learn about and book accommodations directly with the property representative. You understand and agree that holidayhavenhomes.com is not a party to any agreements entered into between property representative and travelers, nor is holidayhavenhomes.com a real estate broker, agent or insurer. holidayhavenhomes.com has no control over the conduct of property representatives, travelers and other users of the site and services or any accommodations, and disclaims all liability in this regard to the maximum extent permitted by law.

KEY TERMS

"holidayhavenhomes.com Content" means all Content that holidayhavenhomes.com makes available through the Site or Services, including any Content licensed from a third party, but excluding Member Content.

"Calendar Request Period" means the time period starting from the time when a booking is requested by a Traveler.

"Collective Content" means Member Content and holidayhavenhomes.com Content.

"Content" means text, graphics, images, music, software, audio, video, information or other materials.

"Traveler" means a Member who requests from a Property Representative a booking of an Accommodation via the Site or Services, or a Member who stays at an Accommodation and is not the Property Representative for such Accommodation.

"Property Representative" means a Member who creates a Listing via the Site and Services.

"Listing" means an Accommodation that is listed by a Property Representative as available for rental via the Site and Services.

"Member" means a person who completes holidayhavenhomes.com's account registration process, including but not limited to Property Representatives and Travelers, as described under "Account Registration" below.

"Member Content" means all Content that a Member posts, uploads, publishes, submits, transmits, or includes in their Listing or Member profile to be made available through the Site or Services.

"Tax" or **"Taxes"** mean any sales taxes, value added taxes (VAT), goods and services taxes (GST), transient occupancy taxes, tourist or other visitor taxes, accommodation or lodging taxes, fees (such as convention center fees) that accommodation providers may be required by law to collect and remit to governmental agencies, and other similar municipal, state, federal and national indirect or other withholding and personal or corporate income taxes.

Certain areas of the Site and Application (and your access to or use of certain aspects of the Services or Collective Content) may have different terms and conditions posted or may require you to agree with and accept additional terms and conditions. If there is a conflict between these Terms and terms and conditions posted for a specific area of the Site, Application, Services, or Collective Content, the latter terms and conditions will take precedence with respect to your use of or access to that area of the Site, Application, Services, or Collective Content.

You acknowledge and agree that, by accessing or using the site, application or services or by downloading or posting any content from or on the site, via the application or through the services, you are indicating that you have read, and that you understand and agree to be bound by these terms, whether or not you have registered with the site and application. If you do not agree to these terms, then you have no right to access or use the site, application, services, or collective content. If you accept or agree to these Terms on behalf of a company or other legal entity, you represent and warrant that you have the authority to bind that company or other legal entity to these Terms and, in such event, "you" and "your" will refer and apply to that company or other legal entity.

MODIFICATION

holidayhavenhomes.com reserves the right, at its sole discretion, to modify the Site, Application or Services or to modify these Terms at any time and without prior notice. If we modify these Terms, we will either post the modification on the Site or via the Application or otherwise provide you with notice of the modification. We will also update the "Last Updated Date" at the top of these Terms. By continuing to access or use the Site,

Application or Services after we have posted a modification on the Site or via the Application or have provided you with notice of a modification, you are indicating that you agree to be bound by the modified Terms. If the modified Terms are not acceptable to you, your only recourse is to cease using the Site, Application and Services.

ELIGIBILITY

The Site, Application and Services are intended solely for persons who are 18 or older. Any access to or use of the Site, Application or Services by anyone under 18 is expressly prohibited. By accessing or using the Site, Application or Services you represent and warrant that you are 18 or older.

HOW THE SITE, APPLICATION AND SERVICES WORK

The Site, Application and Services can be used to facilitate the listing and booking of residential and other properties ("**Accommodations**"). Such Accommodations are included in Listings on the Site, Application and Services by Property Representatives. You may view Listings as an unregistered visitor to the Site, Application and Services; however, if you wish to book an Accommodation or create a Listing, you must first register to create a holidayhavenhomes.com Account (defined below).

As stated above, holidayhavenhomes.com makes available an online platform or marketplace with related technology for Travelers and Property Representatives to meet online and arrange for bookings of Accommodations directly with each other. holidayhavenhomes.com is not an owner or operator of properties, including, but not limited to, hotel rooms, motel rooms, other lodgings or Accommodations, nor is it a provider of properties, including, but not limited to, hotel rooms, motel rooms, other lodgings or Accommodations and holidayhavenhomes.com does not own, sell, resell, furnish, provide, rent, re-rent, manage and/or control properties, including, but not limited to, hotel rooms, motel rooms, other lodgings or Accommodations or transportation or travel services. Unless explicitly specified otherwise in the holidayhavenhomes.com platform, holidayhavenhomes.com's responsibilities are limited to: (i) facilitating the availability of the Site, Application and Services and (ii) serving as the limited payment collection agent of each Property Representative for the purpose of accepting payments from Travelers on behalf of the Property Representative.

Please note that, as stated above, the site, application and services are intended to be used to facilitate property representatives and travelers connecting and booking accommodations directly with each other. holidayhavenhomes.com cannot and does not control the content contained in any listings and the condition, legality or suitability of any accommodations. holidayhavenhomes.com is not responsible for and disclaims any and all liability related to any and all listings and accommodations. Accordingly, any bookings will be made or accepted at the member's own risk.

ACCOUNT REGISTRATION

In order to access certain features of the Site and Application, and to book an Accommodation or create a Listing, you must register to create an account ("**holidayhavenhomes.com Account**") and become a Member. You may register to join the Services directly via the Site or Application or as described in this section.

You can also register to join by logging into your account with certain third-party social networking sites ("**SNS**") (including, but not limited to, Facebook; each such account, a "**Third-Party Account**"), via our Site or Application, as described below. As part of the functionality of the Site, Application and Services, you may link your holidayhavenhomes.com Account with Third-Party Accounts, by either: (i) providing your Third-Party Account login information to holidayhavenhomes.com through the Site, Services or Application; or (ii) allowing holidayhavenhomes.com to access your Third-Party Account, as permitted under the applicable terms and conditions that govern your use of each Third-Party Account. You represent that you are entitled to disclose your Third-Party Account login information to holidayhavenhomes.com and/or grant holidayhavenhomes.com access to your Third-Party Account (including, but not limited to, for use for the purposes described herein), without

breach by you of any of the terms and conditions that govern your use of the applicable Third-Party Account and without obligating holidayhavenhomes.com to pay any fees or making holidayhavenhomes.com subject to any usage limitations imposed by such third-party service providers. By granting holidayhavenhomes.com access to any Third-Party Accounts, you understand that holidayhavenhomes.com will access, make available and store (if applicable) any Content that you have provided to and stored in your Third-Party Account ("**SNS Content**") so that it is available on and through the Site, Services and Application via your holidayhavenhomes.com Account and holidayhavenhomes.com Account profile page. Unless otherwise specified in these Terms, all SNS Content, if any, will be considered to be Member Content for all purposes of these Terms. Depending on the Third-Party Accounts you choose and subject to the privacy settings that you have set in such Third-Party Accounts, personally identifiable information that you post to your Third-Party Accounts will be available on and through your holidayhavenhomes.com Account on the Site, Services and Application. Please note that if a Third-Party Account or associated service becomes unavailable or holidayhavenhomes.com's access to such Third-Party Account is terminated by the third-party service provider, then SNS Content will no longer be available on and through the Site, Services and Application. You have the ability to disable the connection between your holidayhavenhomes.com Account and your Third-Party Accounts, at any time, by accessing the "Settings" section of the Site and Application. Please note that your relationship with the third-party service providers associated with your third-party accounts is governed solely by your agreement(s) with such third-party service providers. holidayhavenhomes.com makes no effort to review any SNS Content for any purpose, including but not limited to for accuracy, legality or non-infringement and holidayhavenhomes.com is not responsible for any SNS Content.

Your holidayhavenhomes.com Account and your holidayhavenhomes.com Account profile page will be created for your use of the Site and Application based upon the personal information you provide to us or that we obtain via an SNS as described above. You may not have more than one (1) active holidayhavenhomes.com Account. You agree to provide accurate, current and complete information during the registration process and to update such information to keep it accurate, current and complete. holidayhavenhomes.com reserves the right to suspend or terminate your holidayhavenhomes.com Account and your access to the Site, Application and Services if you create more than one (1) holidayhavenhomes.com Account, or if any information provided during the registration process or thereafter proves to be inaccurate, fraudulent, not current or incomplete. You are responsible for safeguarding your password. You agree that you will not disclose your password to any third party and that you will take sole responsibility for any activities or actions under your holidayhavenhomes.com Account, whether or not you have authorized such activities or actions. You will immediately notify holidayhavenhomes.com of any unauthorized use of your holidayhavenhomes.com Account.

ACCOMMODATION LISTINGS

As a Member, you may create Listings. To create a Listing, you will be asked a variety of questions about the Accommodation to be listed, including, but not limited to, the location, capacity, size, features, and availability of the Accommodation and pricing and related rules and financial terms. In order to be featured in Listings via the Site, Application and Services, all Accommodations must have valid physical addresses. Listings will be made publicly available via the Site, Application and Services. Other Members will be able to book your Accommodation via the Site, Application and Services based upon the information provided in your Listing. You understand and agree that once a Traveler requests a booking of your Accommodation, you may not request the Traveler to pay a higher price than in the booking request.

You acknowledge and agree that you alone are responsible for any and all Listings and Member Content you post. Accordingly, you represent and warrant that any Listing you post and the booking of, or a Traveler's stay at, an Accommodation in a Listing you post (i) will not breach any agreements you have entered into with any third parties, such as homeowners association, condominium, lease or rental agreements, and (ii) will (a) be in compliance with all applicable laws (such as zoning laws and laws governing rentals of residential and other properties), Tax requirements, and rules and regulations that may apply to any Accommodation included in a Listing you post (including having all required permits, licenses and registrations), and (b) not conflict with the rights of third parties. Please note that holidayhavenhomes.com assumes no responsibility for a Property Representative's compliance with any agreements with or duties to third parties, applicable laws, rules and regulations. holidayhavenhomes.com reserves the right, at any time and without prior notice, to remove or disable access to any Listing for any

reason, including Listings that holidayhavenhomes.com, in its sole discretion, considers to be objectionable for any reason, in violation of these Terms.

If you are a Property Representative, you understand and agree that holidayhavenhomes.com does not act as an insurer or as your contracting agent. If a Traveler requests a booking of your Accommodation and stays at your Accommodation, any agreement you enter into with such Traveler is between you and the Traveler and holidayhavenhomes.com is not a party to it. Notwithstanding the foregoing, holidayhavenhomes.com Payments serves as the limited authorized payment collection agent of the Property Representative for the purpose of accepting, on behalf of the Property Representative, payments from Travelers of such amounts stipulated by the Property Representative (including cleaning or other fees and/or Taxes).

When you create a Listing, you may also choose to include certain requirements which must be met by the Members who are eligible to request a booking of your Accommodation, such as requiring Members to have a profile picture or verified phone number, in order to book your Accommodation. Any Member wishing to book Accommodations included in Listings with such requirements must meet these requirements. More information on how to set such requirements is available via the "Owner" section of the Site, Application and Services.

If you are a Property Representative, holidayhavenhomes.com makes certain tools available to you to help you to make informed decisions about which Members you choose to confirm or preapprove for booking for your Accommodation. You acknowledge and agree that, as a Property Representative, you are responsible for your own acts and omissions and are also responsible for the acts and omissions of any individuals who reside at or are otherwise present at the Accommodation at your request or invitation, excluding the Traveler (and the individuals the Traveler invites to the Accommodation, if applicable.)

holidayhavenhomes.com recommends that Property Representatives obtain appropriate insurance for their Accommodations. Please review any insurance policy that you may have for your Accommodation carefully, and in particular please make sure that you are familiar with and understand any exclusions to, and any deductibles that may apply for, such insurance policy, including, but not limited to, whether or not your insurance policy will cover the actions or inactions of Travelers (and the individuals the Traveler invites to the Accommodation, if applicable) while at your Accommodation.

NO ENDORSEMENT

holidayhavenhomes.com does not endorse any Member or any Accommodation. You understand that Verified Images are intended only to indicate a photographic representation of the Accommodation at the time the photograph was taken. Verified Images are therefore not an endorsement by holidayhavenhomes.com of any Member or any Accommodation. Members are required by these Terms to provide accurate information, and although holidayhavenhomes.com may undertake additional checks and processes designed to help verify or check the identities or backgrounds of users, we do not make any representations about, confirm, or endorse any Member or the Member's purported identity or background.

Any references in the Site, Application or Services to a Member being "verified" or "connected" (or similar language) only indicate that the Member has completed a relevant verification process, and does not represent anything else. Any such description is not an endorsement, certification or guarantee by holidayhavenhomes.com about any Member, including of the Member's identity and whether the Member is trustworthy, safe or suitable. Instead, any such description is intended to be useful information for you to evaluate when you make your own decisions about the identity and suitability of others whom you contact or interact with via the Site, Application and Services. We therefore recommend that you always exercise due diligence and care when deciding whether to stay with a Property Representative or to accept a booking request from a Traveler, or to have any other interaction with any other Member, we are not responsible for any damage or harm resulting from your interactions with other Members.

By using the Site, Application or Services, you agree that any legal remedy or liability that you seek to obtain for actions or omissions of other Members or other third parties will be limited to a claim against the particular Members or other third parties who caused you harm. You agree not to attempt to impose liability on or seek any legal remedy from holidayhavenhomes.com with respect to such actions or omissions. Accordingly, we encourage you to communicate directly with other Members on the Site and Services regarding any bookings or Listings made by you. This limitation shall not apply to any claim by a Property Representative against holidayhavenhomes.com regarding the remittance of payments received from a Traveler by holidayhavenhomes.com on behalf of a Property Representative, which instead shall be subject to the limitations described in the section below entitled "Limitation of Liability".

BOOKINGS AND FINANCIAL TERMS *Key definitions*

“Subscription Fees” means collectively the Property Representative fee paid to create an annual listing

Subscription Fees

Subscription rates and fees charged for any listing are set at the time of a Property Representative’s purchase of the subscription or renewal or sign up. Such rates and fees are subject to change without notice or approval. The rates in effect at the time of the Property Representative’s next subscription renewal, new listing or a member’s upgrade or any other additional or new order of any product or service will govern for such renewal or other order.

The types of products and services (including the features, terms and operation thereof) offered at the time of a Property Representative’s subscription or sign up are subject to the descriptions displayed at the time of use and/or purchase and are subject to change without notice or approval. holidayhavenhomes.com further reserve the right to offer additional products, services or features for purchase at any time.

SUBSCRIPTION TERM, REFUND REQUESTS AND TERMINATION OR TRANSFER OF LISTINGS

Subscription Term: All subscription listings are sold to run the full term that is chosen by the Property Representative. The term starts on the date that the Property Representative submits the full or initial (as applicable) payment and expires on the last date of the term chosen by the Property Representative. For example, for an annual subscription term, if the Property Representative submits payment for the subscription on July 1st, the subscription would expire on June 30 of the following year.

Refund Requests: Generally, no refunds are available for annul subscriptions. Once and annual subscription is paid for and set as active on holidayhavenhomes.com it is no longer eligible for a refund of any kind.

Refund Requests for Subscription Listings Not Completed: In the event you purchase a subscription for a listing but do not complete the creation of the listing or the listing does not get posted after purchase for any other reason, refund requests will be considered only during the first two (2) months following the purchase date. If within such two (2) month period you do not complete the creation of your listing as we may require to display such listing on the Site (i) you shall not be entitled to any refund and (ii) your subscription will expire no more than 15 months from the purchase date of the subscription regardless of the listing posting date.

If you renew your subscription, or if your subscription automatically renews under its terms of your subscription, your listing will remain online for the entire subscription period without refund. If you sell your property and no longer wish for the listing to remain online, please contact us and we can remove the listing; however, no refund will be owed.

Our Right to Terminate a Listing: If, in our sole discretion, any Property Representative submits unsuitable material to our Site or into our database, misuses the Site or our online system or is in material breach of these Terms, we reserve the right to terminate such Property

Representative's subscription(s) immediately without refund. In addition, if we become aware of or receive a complaint or a series of complaints from any user or other third party regarding a Property Representative's listing or rental practices that, in our sole discretion, warrants the immediate removal of such Property Representative's listing from the Site (for example, and without limitation, if a member double-books a property for multiple Travelers on the same date, or engages in any practice that, in our sole discretion, would be considered deceptive, unfair or improper within the vacation rental industry or in an online marketplace for vacation rentals, if we determine or suspect that the Property Representative's payment-related practices or procedures are not secure, legal or otherwise proper, or if we receive a complaint that any listing's content infringes on the rights of a third party), then we may immediately terminate such Property Representative's listing(s) or subscription(s) without notice to the member and without refund. We assume no duty to investigate complaints. Finally, if any member is abusive or offensive to any employee or representative of holidayhavenhomes.com, we reserve the right to terminate such Property Representative's listing(s) or subscription(s) immediately without refund. Finally, if any Property Representative is in breach of these Terms or its obligations to us or any of our third party providers then we may terminate such Property Representative's subscription(s) immediately without notice to the Property Representative and without refund.

Transfer of Listing to a Third Party: No listing may be transferred to another party. In the event of a property sale or change in property management, holidayhavenhomes.com will provide guidance on options for creating a new listing.

TAXES

You as a Property Representative understand and agree that you are solely responsible for determining (i) your applicable Tax reporting requirements, and (ii) the Taxes that should be included, and for including Taxes to be collected or obligations relating to applicable Taxes in Listings. You are also solely responsible for remitting to the relevant authority any Taxes included or received by you. holidayhavenhomes.com cannot and does not offer Tax-related advice to any Members.

You understand and acknowledge that appropriate governmental agencies, departments or authorities (the "**Tax Authority**") where your Accommodation is located may require Taxes to be collected from Travelers or Property Representatives on the amount paid for the right to use and/or occupancy of accommodations, and to be remitted to the respective Tax Authority. The laws in jurisdictions may vary, but these taxes may be required to be collected and remitted as a percentage of the rent or Accommodation Fees set by Property Representatives, a set amount per day, or other variations, and are sometimes called "occupancy taxes," "hotel taxes," "lodging taxes," "transient taxes," "sales and use taxes," "value added taxes," "room taxes" or "tourist taxes" (hereafter, "**Occupancy Taxes**").

USER CONDUCT

You understand and agree that you are solely responsible for compliance with any and all laws, rules, regulations, and Tax obligations that may apply to your use of the Site, Application, Services and Collective Content. In connection with your use of the Site, Application, Services and Collective Content, you may not and you agree that you will not:

- violate any local, state, provincial, national, or other law or regulation, or any order of a court, including, without limitation, zoning restrictions and Tax regulations;
- use manual or automated software, devices, scripts, robots, backdoors or other means or processes to access, "scrape," "crawl" or "spider" any web pages or other services contained in the Site, Application, Services or Collective Content;
- access or use our Site, Application, Services or the holidayhavenhomes.com API to use, expose, or allow to be used or exposed, any holidayhavenhomes.com Content: (i) that is not publicly displayed by holidayhavenhomes.com in its search results pages or listing pages before a booking is confirmed; (ii) in any way that is inconsistent with the holidayhavenhomes.com Privacy Policy or Terms of Service; or (iii) in any way that otherwise violates the privacy rights or any other rights of holidayhavenhomes.com's users or any other third party;

- use the Site, Application, Services or Collective Content for any commercial or other purposes that are not expressly permitted by these Terms;
- copy, store or otherwise access or use any information contained on the Site, Application, Services or Collective Content for purposes not expressly permitted by these Terms;
- infringe the rights of any person or entity, including without limitation, their intellectual property, privacy, publicity or contractual rights;
- interfere with or damage our Site, Application or Services, including, without limitation, through the use of viruses, cancel bots, Trojan horses, harmful code, flood pings, denial-of-service attacks, backdoors, packet or IP spoofing, forged routing or electronic mail address information or similar methods or technology;
- use our Site, Application or Services to transmit, distribute, post or submit any information concerning any other person or entity, including without limitation, photographs of others without their permission, personal contact information or credit, debit, calling card or account numbers;
- use our Site, Application, Services or Collective Content in connection with the distribution of unsolicited commercial email ("spam") or advertisements unrelated to lodging in a private residence;
- "stalk" or harass any other user of our Site, Application, Services or Collective Content, or collect or store any personally identifiable information about any other user other than for purposes of transacting as an holidayhavenhomes.com Traveler or Property Representative;
- offer, as a Property Representative, any Accommodation that you do not yourself own or have permission to rent as a residential or other property (without limiting the foregoing, you will not list Accommodations as a Property Representative if you are serving in the capacity of a rental agent or listing agent for a third party);
- offer, as a Property Representative, any Accommodation that may not be rented or subleased pursuant to the terms and conditions of an agreement with a third party, including, but not limited to, a property rental agreement;
- register for more than one holidayhavenhomes.com Account or register for an holidayhavenhomes.com Account on behalf of an individual other than yourself;
- unless holidayhavenhomes.com explicitly permits otherwise, request or book a stay at any Accommodation if you will not actually be staying at the Accommodation yourself;
- contact a Property Representative for any purpose other than asking a question related to a booking, such Property Representative's Accommodations or Listings;
- contact a Traveler for any purpose other than asking a question related to a booking or such Traveler's use of the Site, Application and Services;
- recruit or otherwise solicit any Property Representative or other Member to join third-party services or websites that are competitive to holidayhavenhomes.com, without holidayhavenhomes.com's prior written approval;
- impersonate any person or entity, or falsify or otherwise misrepresent yourself or your affiliation with any person or entity;
- use automated scripts to collect information from or otherwise interact with the Site, Application, Services or Collective Content;
- use the Site, Application, Services or Collective Content to find a Property Representative or Traveler and then complete a booking of an Accommodation independent of the Site, Application or Services, in order to circumvent the obligation to pay any Service Fees related to holidayhavenhomes.com's provision of the Services or for any other reasons;
- as a Property Representative, submit any Listing with false or misleading price information, or submit any Listing with a price that you do not intend to honor;
- post, upload, publish, submit or transmit any Content that: (i) infringes, misappropriates or violates a third party's patent, copyright, trademark, trade secret, moral rights or other intellectual property rights, or rights of publicity or privacy; (ii) violates, or encourages any conduct that would violate, any applicable law or regulation or would give rise to civil liability; (iii) is fraudulent, false, misleading or deceptive; (iv) is defamatory, obscene, pornographic, vulgar or offensive; (v) promotes discrimination, bigotry, racism, hatred, harassment or harm against any individual or group; (vi) is violent or threatening or promotes violence or actions that are threatening to any other person; or (vii) promotes illegal or harmful activities or substances;

- systematically retrieve data or other content from our Site, Application or Services to create or compile, directly or indirectly, in single or multiple downloads, a collection, compilation, database, directory or the like, whether by manual methods, through the use of bots, crawlers, or spiders, or otherwise;
- use, display, mirror or frame the Site, Application, Services or Collective Content, or any individual element within the Site, Application, Services or Collective Content, holidayhavenhomes.com's name, any holidayhavenhomes.com trademark, logo or other proprietary information, or the layout and design of any page or form contained on a page in the Site, Application or Services, without holidayhavenhomes.com's express written consent;
- access, tamper with, or use non-public areas of the Site, Application or Services, holidayhavenhomes.com's computer systems, or the technical delivery systems of holidayhavenhomes.com's providers;
- attempt to probe, scan, or test the vulnerability of any holidayhavenhomes.com system or network or breach any security or authentication measures;
- avoid, bypass, remove, deactivate, impair, descramble, or otherwise circumvent any technological measure implemented by holidayhavenhomes.com or any of holidayhavenhomes.com's providers or any other third party (including another user) to protect the Site, Services, Application or Collective Content;
- forge any TCP/IP packet header or any part of the header information in any email or newsgroup posting, or in any way use the Site, Services, Application or Collective Content to send altered, deceptive or false source-identifying information;
- attempt to decipher, decompile, disassemble or reverse engineer any of the software used to provide the Site, Services, Application or Collective Content; or
- advocate, encourage, or assist any third party in doing any of the foregoing.
- accept or make a payment for Accommodation Fees outside holidayhavenhomes.com Payments. If you do so, you acknowledge and agree that you: (i) would be in breach of these Terms; (ii) accept all risks and responsibility for such payment, and (iii) hold holidayhavenhomes.com harmless from any liability for such payment.

holidayhavenhomes.com has the right to investigate and prosecute violations of any of the above to the fullest extent of the law.

holidayhavenhomes.com may access, preserve and disclose any of your information if we are required to do so by law, or if we believe in good faith that it is reasonably necessary to (i) respond to claims asserted against holidayhavenhomes.com or to comply with legal process (for example, subpoenas or warrants), (ii) enforce or administer our agreements with users, (iii) for fraud prevention, risk assessment, investigation, customer support, product development and de-bugging purposes, or (iv) protect the rights, property or safety of holidayhavenhomes.com, its users, or members of the public. You acknowledge that holidayhavenhomes.com has no obligation to monitor your access to or use of the Site, Application, Services or Collective Content or to review or edit any Member Content, but has the right to do so for the purpose of operating and improving the Site, Application and Services (including without limitation for fraud prevention, risk assessment, investigation and customer support purposes), to ensure your compliance with these Terms, to comply with applicable law or the order or requirement of a court, administrative agency or other governmental body, to respond to content that it determines is otherwise objectionable or as set forth in these Terms. holidayhavenhomes.com reserves the right, at any time and without prior notice, to remove or disable access to any Collective Content that holidayhavenhomes.com, at its sole discretion, considers to be objectionable for any reason, in violation of these Terms or otherwise harmful to the Site, Application or Services.

PRIVACY

You agree that holidayhavenhomes.com's Privacy Policy (as may be updated from time to time) governs holidayhavenhomes.com's collection and use of your personal information.

IDENTITY VERIFICATION

User verification on the Internet is difficult and we cannot, and do not assume any responsibility for, the confirmation of each user's purported identity. We encourage you to communicate directly with a Traveler or Property Representative through Site, Application, or Services, though even this does not assure you of the identity of the person with which you are communicating. We further encourage you to take other reasonable measures to assure yourself of the other person's identity and, for Travelers, of the Listing and relevant details of your booking or proposed booking.

Each user acknowledges and agrees that: (1) neither holidayhavenhomes.com nor any of its affiliates will have any liability to any user for any unauthorized transaction made using any user's id or password; and (2) the unauthorized use of your online id and password for your holidayhavenhomes.com account or your email account could cause you to incur liability to both homeaway and other users. Further, we may, without notice to you, suspend or cancel your holidayhavenhomes.com Account at any time even without receiving notice from you if we suspect, in our sole discretion, that your account with us or your email account is being used in an unauthorized or fraudulent manner.

OWNERSHIP

The Site, Application, Services, and Collective Content are protected by copyright, trademark, and other laws of the United States and foreign countries. You acknowledge and agree that the Site, Application, Services and Collective Content, including all associated intellectual property rights, are the exclusive property of holidayhavenhomes.com and its licensors. You will not remove, alter or obscure any copyright, trademark, service mark or other proprietary rights notices incorporated in or accompanying the Site, Application, Services, or Collective Content.

holidayhavenhomes.COM CONTENT AND MEMBER CONTENT LICENSE

Subject to your compliance with the terms and conditions of these Terms, holidayhavenhomes.com grants you a limited, non-exclusive, non-transferable license, to (i) access and view any holidayhavenhomes.com Content solely for your personal and non-commercial purposes and (ii) access and view any Member Content to which you are permitted access, solely for your personal and non-commercial purposes. You have no right to sublicense the license rights granted in this section.

You will not use, copy, adapt, modify, prepare derivative works based upon, distribute, license, sell, transfer, publicly display, publicly perform, transmit, broadcast or otherwise exploit the Site, Application, Services, or Collective Content, except as expressly permitted in these Terms. No licenses or rights are granted to you by implication or otherwise under any intellectual property rights owned or controlled by holidayhavenhomes.com or its licensors, except for the licenses and rights expressly granted in these Terms.

SUBSTITUTION OF PROPERTIES; ADVERTISING MORE THAN ONE PROPERTY; PROPERTY MANAGERS

Each listing must relate to an individual and uniquely identified property, unless (i) you are a Property Representative who has signed up for one of our packages for members who manage multiple properties or (ii) you otherwise purchased a listing package that expressly allows for substitution of properties. This means that:

- The property in a listing may not be substituted for another property without our consent. We may approve a request in our discretion if the property manager's contract for the property was terminated and the member provides sufficient proof, as requested by us, and completes any additional request forms we may request. The term of the subscription for any substituted property shall be the same as the term of the originally listed property (i.e., the term will not be extended past the original term).
- If a member submits changes to an existing listing that, if approved, would substantially alter the listing to make it that of another property, then we have the right to terminate the listing and may choose, in our sole discretion, to retain any fees associated with the term of the previously existing listing as compensation for the violation of this condition.

- The listing specifically cannot be a mere example of properties in a given area. Only one property can appear on each listing, unless it is a property with multiple rental units on the same site and additional advertising units are purchased. We reserve the right to amend the copy or remove any listing when more than one property is described in such listing, and may choose, in our sole discretion to retain any fees associated with the initial term of such non-conforming listing as compensation for the violation of this condition

MEMBER CONTENT

We may, in our sole discretion, permit you to post, upload, publish, submit or transmit Member Content. By making available any Member Content on or through the Site, Application and Services, you hereby grant to holidayhavenhomes.com a worldwide, irrevocable, perpetual (or for the term of the protection), non-exclusive, transferable, royalty-free license, with the right to sublicense, to use, view, copy, adapt, modify, distribute, license, sell, transfer, publicly display, publicly perform, transmit, stream, broadcast, access, view, and otherwise exploit such Member Content on, through, by means of or to promote or market the Site, Application and Services. holidayhavenhomes.com does not claim any ownership rights in any such Member Content and nothing in these Terms will be deemed to restrict any rights that you may have to use and exploit any such Member Content.

You acknowledge and agree that you are solely responsible for all Member Content that you make available through the Site, Application and Services. Accordingly, you represent and warrant that: (i) you either are the sole and exclusive owner of all Member Content that you make available through the Site, Application and Services or you have all rights, licenses, consents and releases that are necessary to grant to holidayhavenhomes.com the rights in such Member Content, as contemplated under these Terms; and (ii) neither the Member Content nor your posting, uploading, publication, submission or transmittal of the Member Content or holidayhavenhomes's use of the Member Content (or any portion thereof) on, through or by means of the Site, Application and the Services will infringe, misappropriate or violate a third party's patent, copyright, trademark, trade secret, moral rights or other proprietary or intellectual property rights, or rights of publicity or privacy, or result in the violation of any applicable law or regulation.

LINKS

The Site, Application and Services may contain links to third-party websites or resources. You acknowledge and agree that holidayhavenhomes.com is not responsible or liable for: (i) the availability or accuracy of such websites or resources; or (ii) the content, products, or services on or available from such websites or resources. Links to such websites or resources do not imply any endorsement by holidayhavenhomes.com of such websites or resources or the content, products, or services available from such websites or resources. You acknowledge sole responsibility for and assume all risk arising from your use of any such websites or resources or the Content, products or services on or available from such websites or resources.

Some portions of the holidayhavenhomes.com platform implement Google Maps/Earth mapping services, including Google Maps API(s). Your use of Google Maps/Earth is subject to [Google's terms of use](#).

FEEDBACK

We welcome and encourage you to provide feedback, comments and suggestions for improvements to the Site, Application and Services ("**Feedback**"). You may submit Feedback by emailing us, through the Contact Us section of the Site and Application, or by other means of communication. You acknowledge and agree that all Feedback you give us will be the sole and exclusive property of holidayhavenhomes.com and you hereby irrevocably assign to holidayhavenhomes.com and agree to irrevocably assign to holidayhavenhomes.com all of your right, title, and interest in and to all Feedback, including without limitation all worldwide patent, copyright, trade secret, moral and other proprietary or intellectual property rights therein, and waive any moral rights you may have in such Feedback. At holidayhavenhomes.com's request and

expense, you will execute documents and take such further acts as holidayhavenhomes.com may reasonably request to assist holidayhavenhomes.com to acquire, perfect, and maintain its intellectual property rights and other legal protections for the Feedback.

SUSPENSION, TERMINATION AND holidayhavenhomes.COM ACCOUNT CANCELLATION

We may, in our discretion and without liability to you, with or without cause, with or without prior notice and at any time, decide to limit, suspend, deactivate or cancel your holidayhavenhomes.com Account. If we exercise our discretion under these Terms to do so, any or all of the following can occur with or without prior notice or explanation to you: (a) your holidayhavenhomes.com Account will be deactivated or suspended, your password will be disabled, and you will not be able to access the Site, Application, Services, your holidayhavenhomes.com Account, your Member Content, or receive assistance from holidayhavenhomes.com Customer Service, (b) any pending or accepted future bookings as either Property Representative or Traveler will be immediately terminated, (c) we may communicate to your Travelers or Property Representatives that a potential or confirmed booking has been cancelled, (d) we may refund your Travelers in full for any and all confirmed reservations, irrespective of preexisting cancellation policies, (e) we may contact your Travelers to inform them about potential alternate Accommodations with other Property Representatives that may be available on the Site, Application and Services, and (f) you will not be entitled to any compensation for reservations or bookings (even if confirmed) that were cancelled as a result of a suspension, deactivation or termination of your holidayhavenhomes.com Account. You may cancel your holidayhavenhomes.com Account at any time via the "Cancel Account" feature of the Services or by sending us an email. Please note that if your holidayhavenhomes.com Account is cancelled, we do not have an obligation to delete or return to you any Content you have posted to the Site, Application and Services, including, but not limited to, any reviews or Feedback.

DISCLAIMERS

If you choose to use the site, application, services or collective content or participate in the referral program, you do so at your sole risk. You acknowledge and agree that holidayhavenhomes.com does not have an obligation to conduct background or registered sex offender checks on any member, including, but not limited to, travelers and property representatives, but may conduct such background or registered sex offender checks in its sole discretion. The site, application, services, collective content and referral program are provided "as is", without warranty of any kind, either express or implied. Without limiting the foregoing, holidayhavenhomes.com explicitly disclaims any warranties of merchantability, fitness for a particular purpose, quiet enjoyment or non-infringement, and any warranties arising out of course of dealing or usage of trade. holidayhavenhomes.com makes no warranty that the site, application, services, collective content, including, but not limited to, the listings or any accommodations, or the referral program will meet your requirements or be available on an uninterrupted, secure, or error-free basis. holidayhavenhomes.com makes no warranty regarding the quality of any listings, accommodations, property representatives, travelers, your accrual of holidayhavenhomes.com travel credits, the services or collective content or the accuracy, timeliness, truthfulness, completeness or reliability of any collective content obtained through the site, application, services or referral program.

No advice or information, whether oral or written, obtained from holidayhavenhomes.com or through the site, application, services or collective content, will create any warranty not expressly made herein.

You are solely responsible for all of your communications and interactions with other users of the site, application or services and with other persons with whom you communicate or interact as a result of your use of the site, application or services, including, but not limited to, any property representatives or travelers. You understand that holidayhavenhomes.com does not make any attempt to verify the statements of users of the site, application or services or to review or visit any accommodations. holidayhavenhomes.com makes no representations or warranties as to the conduct of users of the site, application or services or their compatibility with any current or future users of the site, application or services. You agree to take reasonable precautions in all communications and interactions with other users of the site, application or services and with other persons with whom you communicate or interact as a result of your use of the site, application or services, including, but not limited to, travelers and property representatives, particularly if you decide to meet offline or in person regardless of whether such meetings are organized

by holidayhavenhomes.com. Notwithstanding holidayhavenhomes.com's appointment as the limited payment collection agent of the property representatives for the purpose of accepting payments from travelers on behalf of the property representatives, holidayhavenhomes.com explicitly disclaims all liability for any act or omission of any traveler or other third party.

LIMITATION OF LIABILITY

You acknowledge and agree that, to the maximum extent permitted by law, the entire risk arising out of your access to and use of the site, application, services and collective content, your listing or booking of any accommodations via the site, application and services, your participation in the referral program, and any contact you have with other users of holidayhavenhomes.com whether in person or online remains with you. Neither holidayhavenhomes.com nor any other party involved in creating, producing, or delivering the site, application, services, collective content or the referral program will be liable for any incidental, special, exemplary or consequential damages, including lost profits, loss of data or loss of goodwill, service interruption, computer damage or system failure or the cost of substitute products or services, or for any damages for personal or bodily injury or emotional distress arising out of or in connection with these terms, from the use of or inability to use the site, application, services or collective content, from any communications, interactions or meetings with other users of the site, application, or services or other persons with whom you communicate or interact as a result of your use of the site, application, services, or your participation in the referral program or from your listing or booking of any accommodation via the site, application and services, whether based on warranty, contract, tort (including negligence), product liability or any other legal theory, and whether or not holidayhavenhomes.com has been informed of the possibility of such damage, even if a limited remedy set forth herein is found to have failed of its essential purpose.

Except for our obligations to pay amounts to applicable property representatives pursuant to these terms or an approved payment request under the holidayhavenhomes.com property representative guarantee, in no event will holidayhavenhomes.com's aggregate liability arising out of or in connection with these terms and your use of the site, application and services including, but not limited to, from your listing or booking of any accommodation via the site, application and services, or from the use of or inability to use the site, application, services, or collective content or your participation in the referral program and in connection with any accommodation or interactions with any other members, exceed the amounts you have paid or owe for bookings via the site, application and services as a traveler in the twelve (12) month period prior to the event giving rise to the liability, or if you are a property representative, the amounts paid by holidayhavenhomes.com to you in the twelve (12) month period prior to the event giving rise to the liability, or one hundred u.s. dollars (us\$100), if no such payments have been made, as applicable. The limitations of damages set forth above are fundamental elements of the basis of the bargain between holidayhavenhomes.com and you. Some jurisdictions do not allow the exclusion or limitation of liability for consequential or incidental damages, so the above limitation may not apply to you.

INDEMNIFICATION

You agree to release, defend, indemnify, and hold holidayhavenhomes.com and its affiliates and subsidiaries, and their officers, directors, employees and agents, harmless from and against any claims, liabilities, damages, losses, and expenses, including, without limitation, reasonable legal and accounting fees, arising out of or in any way connected with (a) your access to or use of the Site, Application, Services, or Collective Content or your violation of these Terms; (b) your Member Content; (c) your (i) interaction with any Member, (ii) booking of an Accommodation, or (iii) creation of a Listing; (d) the use, condition or rental of an Accommodation by you, including but not limited to any injuries, losses, or damages (compensatory, direct, incidental, consequential or otherwise) of any kind arising in connection with or as a result of a rental, booking or use of a Accommodation; and (e) your participation in the Referral Program or your accrual of any holidayhavenhomes.com Travel Credits.

REPORTING MISCONDUCT

If you stay with or host anyone who you feel is acting or has acted inappropriately, including but not limited to anyone who (i) engages in offensive, violent or sexually inappropriate behavior, (ii) you suspect of stealing from you, or (iii) engages in any other disturbing conduct, you should immediately report such person to the appropriate authorities and then to holidayhavenhomes.com by contacting us with your police station and report number; provided that your report will not obligate us to take any action beyond that required by law (if any) or cause us to incur any liability to you.

ENTIRE AGREEMENT

These Terms constitute the entire and exclusive understanding and agreement between holidayhavenhomes.com and you regarding the Site, Application, Services, Collective Content, and any bookings or Listings of Accommodations made via the Site, Application and Services, and these Terms supersede and replace any and all prior oral or written understandings or agreements between holidayhavenhomes.com and you regarding bookings or listings of Accommodations, the Site, Application, Services, and Collective Content.

ASSIGNMENT

You may not assign or transfer these Terms, by operation of law or otherwise, without holidayhavenhomes.com's prior written consent. Any attempt by you to assign or transfer these Terms, without such consent, will be null and of no effect. holidayhavenhomes.com may assign or transfer these Terms, at its sole discretion, without restriction. Subject to the foregoing, these Terms will bind and inure to the benefit of the parties, their successors and permitted assigns.

NOTICES

Any notices or other communications permitted or required hereunder, including those regarding modifications to these Terms, will be in writing and given by holidayhavenhomes.com (i) via email (in each case to the address that you provide) or (ii) by posting to the Site or via the Application. For notices made by e-mail, the date of receipt will be deemed the date on which such notice is transmitted.

CONTROLLING LAW AND JURISDICTION

These Terms and your use of the Services will be interpreted in accordance with the laws of the State of Arizona and the United States of America, without regard to its conflict-of-law provisions. You and we agree to submit to the personal jurisdiction of a state court located in Maricopa County, Scottsdale, Arizona for any actions for which the parties **retain the right to seek** injunctive or other equitable relief in a court of competent jurisdiction to prevent the actual or threatened infringement, misappropriation or violation of a party's copyrights, trademarks, trade secrets, patents, or other intellectual property rights, **as set forth in the Dispute Resolution provision below.**

DISPUTE RESOLUTION

You and holidayhavenhomes.com agree that any dispute, claim or controversy arising out of or relating to these Terms or the breach, termination, enforcement, interpretation or validity thereof, or to the use of the Services or use of the Site or Application (collectively, "**Disputes**") will be settled by binding arbitration, except that each party retains the right to seek injunctive or other equitable relief in a court of competent jurisdiction to prevent the actual or threatened infringement, misappropriation or violation of a party's copyrights, trademarks, trade secrets, patents, or other intellectual property rights. You acknowledge and agree that you and holidayhavenhomes.com are each waiving the right to a trial by jury or to participate as a plaintiff or class member in any purported class action or representative proceeding. Further, unless both you and holidayhavenhomes.com otherwise agree in writing, the arbitrator may not consolidate more than one person's claims, and may not otherwise preside over any form of any class or representative proceeding. If this specific paragraph is held unenforceable, then the entirety of this "Dispute

Resolution" section will be deemed void. Except as provided in the preceding sentence, this "Dispute Resolution" section will survive any termination of these Terms.

Arbitration Rules and Governing Law. The arbitration will be administered by the American Arbitration Association ("**AAA**") in accordance with the Commercial Arbitration Rules and the Supplementary Procedures for Consumer Related Disputes (the "**AAA Rules**") then in effect, except as modified by this "Dispute Resolution" section. The Federal Arbitration Act will govern the interpretation and enforcement of this section.

Arbitration Process. A party who desires to initiate arbitration must provide the other party with a written Demand for Arbitration as specified in the AAA Rules. The arbitrator will be either a retired judge or an attorney licensed to practice law in the state of Arizona and will be selected by the parties from the AAA's roster of consumer dispute arbitrators. If the parties are unable to agree upon an arbitrator within seven (7) days of delivery of the Demand for Arbitration, then the AAA will appoint the arbitrator in accordance with the AAA Rules.

Arbitration Location and Procedure. Unless you and holidayhavenhomes.com otherwise agree, the arbitration will be conducted in the county where you reside. If your claim does not exceed \$10,000, then the arbitration will be conducted solely on the basis of documents you and holidayhavenhomes.com submit to the arbitrator, unless you request a hearing or the arbitrator determines that a hearing is necessary. If your claim exceeds \$10,000, your right to a hearing will be determined by the AAA Rules. Subject to the AAA Rules, the arbitrator will have the discretion to direct a reasonable exchange of information by the parties, consistent with the expedited nature of the arbitration.

Arbitrator's Decision. The arbitrator will render an award within the time frame specified in the AAA Rules. The arbitrator's decision will include the essential findings and conclusions upon which the arbitrator based the award. Judgment on the arbitration award may be entered in any court having jurisdiction thereof. The arbitrator's award damages must be consistent with the terms of the "Limitation of Liability" section above as to the types and the amounts of damages for which a party may be held liable. The arbitrator may award declaratory or injunctive relief only in favor of the claimant and only to the extent necessary to provide relief warranted by the claimant's individual claim. If you prevail in arbitration you will be entitled to an award of attorneys' fees and expenses, to the extent provided under applicable law. holidayhavenhomes.com will not seek, and hereby waives all rights it may have under applicable law to recover, attorneys' fees and expenses if it prevails in arbitration.

Fees. Your responsibility to pay any AAA filing, administrative and arbitrator fees will be solely as set forth in the AAA Rules. However, if your claim for damages does not exceed \$75,000, holidayhavenhomes.com will pay all such fees unless the arbitrator finds that either the substance of your claim or the relief sought in your Demand for Arbitration was frivolous or was brought for an improper purpose (as measured by the standards set forth in Federal Rule of Civil Procedure 11(b)).

Changes. Notwithstanding the provisions of the "Modification" section above, if holidayhavenhomes.com changes this "Dispute Resolution" section after the date you first accepted these Terms (or accepted any subsequent changes to these Terms), you may reject any such change by sending us written notice (including by email) within 30 days of the date such change became effective, as indicated in the "Last Updated Date" above or in the date of holidayhavenhomes.com's email to you notifying you of such change. By rejecting any change, you are agreeing that you will arbitrate any Dispute between you and holidayhavenhomes.com in accordance with the provisions of this "Dispute Resolution" section as of the date you first accepted these Terms (or accepted any subsequent changes to these Terms).

GENERAL

The failure of Tripz.com to enforce any right or provision of these Terms will not constitute a waiver of future enforcement of that right or provision. The waiver of any such right or provision will be effective only if in writing and signed by a duly authorized representative of Tripz.com. Except as expressly set forth in these Terms, the exercise by either party of any of its remedies under these Terms will be without prejudice to its other remedies under these Terms or otherwise. If for any reason an arbitrator or a court of competent jurisdiction finds any provision of these

Terms invalid or unenforceable, that provision will be enforced to the maximum extent permissible and the other provisions of these Terms will remain in full force and effect.

THIRD PARTY BENEFICIARY

These Terms do not and are not intended to confer any rights or remedies upon any person other than the parties. Notwithstanding the foregoing, the parties agree that the payment card networks are third party beneficiaries of these Terms for purposes of enforcing provisions related to payments, but that their consent or agreement is not necessary for any changes or modifications to these Terms.

DISTRIBUTION OF LISTINGS TO THIRD PARTY WEBSITES

To enable Property Representatives to obtain broader distribution of their properties, we may provide your listing information, or otherwise provide for the distribution of, your listing on a Third Party Website. Additional terms and conditions may apply to such distributions, as we may notify you of via your online account or email.

Test User